

Defendant specially and generally demurs to Plaintiff's Second Cause of Action for Common Count/Quantum Meruit pursuant to CCP 430.10(e) because "the alleged swimming pool contract fails to contain the terms and notices required by Cal. Bus. & Prof. Code §§ 7159 and 7167 rendering the alleged contract "void and unenforceable by the contractor as contrary to public policy." (Cal. Bus. & Prof. Code § 7167(a).) Whether the contract is "void and unenforceable by the contractor" is relevant only to the breach of contract claim, which has been dismissed. To recover in quantum meruit, a party need not prove the existence of a contract. Defendant argues that noncompliance with section 7159 renders the services performed illegal and therefore prohibits Plaintiff from any recovery for materials and labor. This is not necessarily the case.

"The question of the effect of noncompliance with section 7159 was considered by our Supreme Court in *Asdourian v. Araj* (1985) 38 Cal.3d 276. In that case, a contractor sued the owner for the balance due on remodeling work performed on the owner's property. The owner argued that the contractor was barred by section 7159 from recovering for the completed work as it was done pursuant to oral agreements. The court rejected this argument, holding that an oral contract in violation of section 7159 is merely voidable and not void.

The court stated that the public policy interest underlying section 7159 is to encourage written contracts for home improvements in order to protect unsophisticated consumers. (*Asdourian v. Araj, supra*, 38 Cal.3d at pp. 290, 292.) Further, although there is a general rule that contracts made in violation of a regulatory statute are void, courts will not apply such rule in certain situations. For example, the rule will not be applied where the statutory penalties exclude by implication the additional penalty of holding the contract void. In addition, in compelling cases, where the defendant's unjust enrichment will result at the plaintiff's expense, courts will enforce illegal contracts. (*Id.*, at pp. 291-292.)"

Davenport & Co. v. Spieker (1988) 197 Cal.App.3d 566, 569.

The *Asdourian* Court also noted that "a contract made in violation of section 7159 does not involve the kind of illegality which automatically renders an agreement void. The contracts at issue here were not *malum in se*. They were not immoral in character, inherently inequitable or designed to further a crime or obstruct justice. (*See Vitek, supra*, 34 Cal.App.3d at p. 593.) There was nothing "intrinsically illegal" about the agreements between plaintiff and defendant to repair and remodel the residential property. Rather, the contracts were *malum prohibitum*, and hence only voidable depending on the factual context and the public policies involved. (*Ibid.*)" *Asdourian, supra*, 38 Cal.3d at p. 293.

The Court finds that Plaintiff has adequately stated facts sufficient to constitute a cause of action for quantum meruit. Defendant's Demurrer as to the Second Cause of Action is **OVERRULED**. The proposed order will be modified.

IN RE: SYLVESTER

CASE NUMBER: 26CV-0210663

Tentative Ruling on Petition for Change of Name: Petitioner Tyler Sylvester seeks to change the name of his minor daughter. Proof of publication has been filed. However, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the

hearing date. See CCP § 1277(a)(4).

This matter first came on for hearing on July 20, 2026. The matter was continued to today's date, to permit the father to timely serve the mother with at least 30 days' notice of the hearing. No timely proof of service has been filed. An appearance is necessary on today's calendar to discuss status of service. Failure to appear will result in denial of the petition without prejudice to refile.

WRIGHT VS. TARGET CORPORATION

CASE NUMBER: 26CV-0210029

Tentative Ruling on Motion to Strike: Defendant Target Corporation moves for an Order striking certain portions of the First Amended Complaint on the grounds that punitive and exemplary damages are not support by facts sufficient to satisfy Civil Code section 3294 and are therefore irrelevant, improper, and not drawn in conformity with California law. Plaintiff opposes the Motion.

Meet and Confer: Before filing a motion to strike, a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Michael Tafarella demonstrates compliance with the meet and confer requirement.

Merits: A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. Code Civ. Proc., § 437(a).

Defendant moves to strike all references in the FAC to punitive and exemplary damages, arguing that Plaintiff has not adequately alleged facts sufficient to satisfy Civil Code section 3294. That section provides that a plaintiff may recover punitive and exemplary damages where clear and convincing evidence establishes that defendant has been guilty of oppression, fraud or malice.

"In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Fraud is an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (internal citations omitted).

Simply characterizing a defendant's conduct as "intentional, willful, malicious, fraudulent, [or] false" is patently insufficient to support a claim. *Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033. Allegations that a defendant's conduct was wrongful, willful, wanton, reckless, or unlawful